Welcome to The PluggedIn Program!

The PluggedIn Program (the "Program") is specifically dedicated to qualified developers of hardware and expansion solutions for Palm™ handheld computers. The Program consists of a collection of 2D drawings, 3D CAD models, specifications, promotional opportunities, new technology information, and vendor contacts for Palm handheld products.

A) Procedure to Obtain Access to the Program:

1. Please complete the attached legal agreement (the "Agreement") by filling in all the blanks. You will need Adobe Acrobat Reader 4.0 to view and print it. Please allow up to two weeks for processing upon receipt of the completed documentation. Keep in mind that postal mail can be slow. If you want expedited service, you may consider sending your documentation express delivery.

2. For legal purposes we only accept Agreements with original signatures*. Faxed copies will not be accepted.* Print, sign and mail two (2) original Agreements to the postal address below:

   Palm, Inc.
   Attention: PluggedIn Program
   5470 Great America Parkway
   M/S: 9216
   Santa Clara, CA 95052
   USA

3. If you have completed both the Agreement and the on-line application correctly and are accepted into the Program, a representative of Palm will counter sign the legal agreements and return one to you via postal mail.

4. The guidelines below have been designed to assist you in completing the Agreement. Once the completed documents are received, you will be notified via email.

B) Guidelines for Submitting PluggedIn Program Membership Agreement:

The following instructions are designed to assist you in completing the Agreement in order that Palm may authorize access to the information as quickly as possible upon receiving the completed agreement.

In order for the Agreement to be countersigned by Palm, all requested information in the Agreement and online application must be fully completed. Palm will not accept any Agreements that have been modified in any way except for the filling in of blanks. Agreements that are received with hand written changes will be discarded.

C) For Members that are executing the Agreement on behalf of a company or other legal entity:

The company will be the Member (not merely an individual within the legal entity) allowing employees of the company access to the information provided under the Agreement.

First page of the Agreement:

1. **Member**: The name of the company and its corporate address should be filled in. However the Member corporate address must match the address represented in the PluggedIn Profile for the legal entity.

- Company name (should not be the name of an individual unless company is solely owned)
- Address
- Effective Date (this should be the date the company executes the Agreement)

Last page of the Agreement:

1. The **Member** signature must be by an authorized representative of the legal entity with appropriate signature authority. Palm assumes that any person signing on behalf of a company has the authority to do so.
2. Site Designee**:** This person **must** be the Primary Contact represented in the PluggedIn Program profile**.**

If you are an independent developer (i.e. you are signing the agreement on your own behalf and not on behalf of a corporation or other legal entity) and will be the sole recipient of the information provided under the Agreement, please complete the Agreement as noted above with the following exceptions:

1. On the first page of the Agreement, your contact information should reflect your information **exactly** as it appears in your PluggedIn Program profile.
2. On the last page of the agreement, the Member signature should be yours, as represented on page one of the Agreement.

PLUGGEDIN PROGRAM MEMBERSHIP AGREEMENT

This PluggedIn Membership Agreement ("Agreement") is entered into between the following parties:

Palm:
Palm, Inc.
Attention: PluggedIn Program
5470 Great America Parkway
M/S: 9216
Santa Clara, CA, 95052

and

Member:
_____
_____
_____
_____

Effective Date:_____

The parties agree as follows:

1. **Definitions**. In addition to the other terms defined herein, the following terms shall have the following meanings:

   a. "PluggedIn Materials" shall have the meaning set forth in Section 2 below.

   b. "Member Product" means a product that is developed using the PluggedIn Materials.

2. **Subject Matter.** The materials licensed under this Agreement are the drawings, specifications, vendor contacts and related documentation (if any) that Palm elects to provide in its sole discretion as part of its PluggedIn Program. The foregoing materials are referred to as the " PluggedIn Materials." Palm may elect at its sole discretion from time to time to add additional materials to the PluggedIn Materials. By way of example, these may consist of enhancements, updates or modifications to the PluggedIn Materials. Palm shall have no obligation to provide any such additional materials. Any such additional materials shall be deemed to be PluggedIn Materials under this Agreement. Palm shall make the PluggedIn Materials available for downloading from a web page created by Palm. Instructions for downloading the PluggedIn Materials will be available on such web page. Following receipt of an executed copy of this Agreement from Member and Palm's acceptance of Member into the PluggedIn Program, Palm shall enable Member to access such web page.

3. **Limited License.** Subject to the terms and conditions of this Agreement, Palm hereby grants Member a royalty-free, non-exclusive, non-transferable, limited license under all of its intellectual property rights in and to the PluggedIn Materials to make, use, sell, offer for sale and import Member Products for use exclusively with Palm branded products; provided that in no event shall Member have the right to use the PluggedIn Materials to make, use, sell, offer for sale or import a land line modem, flip cover, stylus, cradle, charger, connector, face plates, keyboards, synchronization cable, or modem cable without prior written approval from Palm. All rights not expressly granted hereunder are reserved by Palm, and no rights or licenses are implied by this Agreement. Without limiting the foregoing, no right is granted to distribute all or any portion of the PluggedIn Materials. The PluggedIn Materials provided may only be used as expressly provided in this Section 3 and for no other purpose whatsoever. Member acknowledges and agrees that as between Palm and Member, Palm or its suppliers own all right, title and interest in and to the PluggedIn Materials, including, but not limited to, any and all patents, copyrights, trade secrets, trademarks and other intellectual property and proprietary rights therein not expressly granted to Member.

4. **Additional Restrictions.** Except as expressly permitted by this Agreement, Member shall not and shall not through any other party:

   a. copy, duplicate or otherwise reproduce the PluggedIn Materials in any manner;

b. remove, obscure, or alter Palm's copyright notices, trademarks, or other proprietary rights notices affixed to or contained within the PluggedIn Materials; or

c. transmit the PluggedIn Materials over a network or from one computer to another (other than on a limited basis within Member's local area network), or upload the PluggedIn Materials to electronic bulletin boards, web sites, or otherwise distribute them (or any portion), whether electronically, or on tangible media.

5. Confidentiality.

a. Confidential Information. For purposes of this Agreement, "Confidential Information" shall mean the PluggedIn Materials, and the concepts, methods of operation, and ideas disclosed therein, and all related information Palm supplies to Member. Member shall not disclose to any third party or use for any purpose any Confidential Information except as expressly permitted herein. Member agrees to take all reasonable measures to protect Confidential Information and to prevent unauthorized disclosure thereof, which measures shall be at least as stringent as those measures Member takes to protect Member's own most highly confidential information. Member shall have no such obligation with respect to any information to the extent that it: (i) was publicly known at the time it was disclosed to Member or thereafter becomes publicly known other than through Member's fault; (ii) was rightfully known to Member without restriction at the time of disclosure as shown by Member's written files in existence at the time of disclosure; or (iii) becomes known to Member, without restriction, from a source other than Palm without breach of this Agreement by Member and otherwise not in violation of Palm's rights.

b. Notice. Member agrees to notify Palm promptly in the event of any breach of security under conditions in which it would appear that the trade secrets represented by the Confidential Information were prejudiced or exposed to loss. Member shall, upon request of Palm, take all other reasonable steps necessary to recover any compromised trade secrets disclosed to or placed in Member's possession by virtue of this Agreement. Member shall bear the cost of taking such steps.

6. Support and Maintenance

a. Development Support. Palm shall have no obligation pursuant to this Agreement to provide Member with any support regarding the PluggedIn Materials. Notwithstanding any other provisions of this Agreement, Palm shall have no obligation to provide Member with any updates to the PluggedIn Materials. Palm shall not provide any maintenance or support for the Member Products under this Agreement.

b. End User Support. Member shall be solely responsible for providing end user support for any Member Products.

7. Warranty Disclaimer. MEMBER EXPRESSLY ACKNOWLEDGES AND AGREES THAT USE OF THE PLUGGEDIN MATERIALS IS AT MEMBER'S SOLE RISK. THE PLUGGEDIN MATERIALS ARE PROVIDED "AS IS" AND WITHOUT WARRANTY OF ANY KIND AND PALM AND ITS SUPPLIERS EXPRESSLY DISCLAIM ALL WARRANTIES, TERMS AND CONDITIONS, INCLUDING, BUT NOT LIMITED TO, THE IMPLIED WARRANTIES, TERMS AND CONDITIONS OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NONINFRINGEMENT OF THIRD PARTY RIGHTS AND SATISFACTORY QUALITY. NEITHER PALM NOR ITS SUPPLIERS WARRANT THAT THE PLUGGEDIN MATERIALS ARE SUITABLE FOR MEMBER'S USE OR THAT DEFECTS IN THE PLUGGEDIN MATERIALS WILL BE CORRECTED. FURTHERMORE, NEITHER PALM NOR ITS SUPPLIERS WARRANT OR MAKE ANY REPRESENTATIONS REGARDING THE USE OR THE RESULTS OF THE USE OF THE PLUGGEDIN MATERIALS OR IN TERMS OF THEIR CORRECTNESS, ACCURACY, RELIABILITY, OR OTHERWISE. NO ORAL OR WRITTEN INFORMATION OR ADVICE GIVEN BY PALM SHALL CREATE A WARRANTY OR IN ANY WAY INCREASE THE SCOPE OF THIS WARRANTY. THIS DISCLAIMER OF WARRANTY CONSTITUTES AN ESSENTIAL PART OF THIS AGREEMENT. NO USE OF ANY PORTION OF THE PLUGGEDIN MATERIALS IS AUTHORIZED HEREUNDER EXCEPT UNDER THIS DISCLAIMER.

8. Limitation of Liability. UNDER NO CIRCUMSTANCES SHALL PALM BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES, LOSS OF PROFITS OR REVENUE, OR INTERRUPTION OF BUSINESS IN ANY WAY ARISING OUT OF OR RELATED TO THE USE OR

INABILITY TO USE THE PLUGGEDIN MATERIALS, REGARDLESS OF THE FORM OF ACTION, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT PRODUCT LIABILITY OR OTHERWISE, EVEN IF PALM HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

9. **Term and Termination.** This Agreement will continue until terminated as set forth herein. If this Agreement terminates for any reason, Member must immediately destroy all copies of the PluggedIn Materials in Member's possession or control. This Agreement and the rights granted hereunder will terminate automatically if Member fails to comply with terms herein and fail to cure such breach, if subject to cure, within thirty (30) days of becoming aware of the breach. The following Sections shall survive expiration or termination of this Agreement for any reason: 1, 5 and 7 through 19.

10. **Palm Trademarks; Third Party Claims.** Member acknowledges that Palm or its affiliates are the sole owners of all trademark rights in the marks HotSync, Graffiti, Palm, Palm OS, PalmModem, PalmPoint, PalmConnect, Palm III, Palm V, Palm VII, and the Palm Powered and Designed for Palm Handhelds logos. Member agrees to do nothing inconsistent with such ownership. Member acknowledges that this Agreement does not grant any rights to use any of the foregoing trademarks or any other trademark of Palm or any of its affiliates, even if such marks are included in any of the PluggedIn Materials. If Member receives notice that a third party claims an intellectual property right in particular functionality or code contained in the PluggedIn Materials (or their utilization under this Agreement), Member must notify Palm of the same in writing in reasonable detail.

11. **Indemnification.** Member shall indemnify, defend and hold Palm and its officers, directors, agents, suppliers, customers and employees (the "Indemnified Parties") harmless from and against any and all claims, damages, losses, liabilities, costs and expenses (including reasonable fees of attorneys and other professionals) incurred arising from or relating to any breach or claim of breach of any of Member's covenants under this Agreement or by reason of any claims in respect of the distribution or sale of Member Products, including, but not limited to, products liability claims, and not due to any violation or breach by Palm of its covenants under this Agreement.

12. **No Assignment.** Member may not assign or otherwise transfer this Agreement or the rights or obligations hereunder, either in whole or in part, whether voluntarily or by operation of law, without the prior written consent of Palm, which consent may be withheld in Palm's sole discretion, and any attempted transfer or assignment is null and void and shall be deemed a material breach of this Agreement.

13. **Injunctive Relief.** Member acknowledges and agrees that the copying, disclosure or use of the PluggedIn Materials or Confidential Information in a manner inconsistent with any provision of this Agreement shall cause irreparable injury to Palm for which Palm will not have an adequate remedy at law. Accordingly, Palm shall be entitled to equitable relief in court, including but not limited to temporary restraining orders, preliminary injunctions and permanent injunctions.

14. **Export Law Assurances.** The PluggedIn Materials supplied hereunder are subject to all pertinent import and export laws of the United States, including specifically the U.S. Export Administration Regulations ("EAR") and the laws of the country in which Member obtained them. Member agrees that it will be solely responsible for compliance with all such laws. In particular, Member agrees that it will not export, re-export, or transfer, directly or indirectly, the PluggedIn Materials to any person, firm or country on the Denied Persons List, Entity List, Debarred Parties or Specially Designated Nationals lists or to Afghanistan, Cuba, Iran, Iraq, Libya, North Korea, Federal Republic of Yugoslavia (Serbia only), Sudan, or Syria or any other country or entity designated by the U.S. Government as prohibited by U.S. law, or nationals thereof, and that it is not located in such a country or on such a list. Member agrees that it will not transfer, export or re-export, directly or indirectly, the PluggedIn Materials for use or to users in military or proliferation activities (Nuclear, Missile, Chemical or Biological Weapons) without U.S. Government authorization (by export license or regulation). Member agrees that, upon request, it will provide additional end use/end user information or written acceptance of requirements and responsibilities to comply with U.S. export license requirements. Member agrees to be bound by any future modifications of the foregoing list of restricted destinations by amendments to the EAR or other U.S. government regulations.

15. **Distribution Priority.** If Member places orders for the assembly or connector components described in the PluggedIn Materials with any of Palm's manufacturers of such components, and such manufacturer is unable to promptly fill all product orders from Palm due to market demand, manufacturing delays or other factors, Member acknowledges and agrees that such manufacturer shall fulfill all orders by Palm for such components before fulfilling orders to Member or Member's customers.

16. **Relationship of the Parties.** Nothing stated in this Agreement will be construed as creating the relationships of joint venturers, partners, employer and employee, franchisor and franchisee, master and servant, or principal and agent.

17. **Miscellaneous.** This Agreement represents the complete, final and exclusive agreement concerning the subject matter hereof. If any provision of this Agreement is held to be unenforceable, such provision shall be reformed only to the extent necessary to make it enforceable. This Agreement shall be governed by California law provisions (except to the extent applicable law, if any, provides otherwise), excluding its conflict-of-law provisions. Unless otherwise agreed in writing, all disputes relating to this Agreement (excepting any dispute relating to intellectual property rights) shall be subject to final and binding arbitration, with the losing party paying all costs of arbitration. Any arbitration relating to this Agreement shall be held in Santa Clara County, California, under the auspices of JAMS/EndDispute. Any litigation relating to this Agreement shall be subject to the jurisdiction of the Federal Courts of the Northern District of California, with venue lying in Santa Clara County, California, with the losing party responsible for costs, including without limitation, court costs and reasonable attorneys fees and expenses. The application of the United Nations Convention on Contracts for the International Sale of Goods is expressly excluded. Any law or regulation which provides that the language of a contract shall be construed against the drafter shall not apply to this Agreement.

18. **English Language.** The parties hereto confirm that they have requested that this Agreement and all related documents be drafted in English. Les parties ont exigé que le présent contrat et tous les documents connexes soient rédigés en anglais.

19. **Notices.** Any notices, demands or consents required or permitted under this Agreement shall be in writing. Notice shall be considered delivered and effective when (a) personally delivered, (b) the day following transmission if sent by telex, telegram or facsimile, or (c) one (1) day after posting when sent by registered, private, overnight carrier (e.g. Federal Express, DHL, etc.); or (d) five days after posting when sent by certified United States mail. Notice shall be sent to the parties at the addresses set forth on the first page of this Agreement or at such other address as shall be given by either party to the other in writing. Notices to Palm shall be addressed to the attention of the PluggedIn Program.

In witness whereof, the parties have executed this Agreement as of the Effective Date.

Member:	Palm, Inc.
By: _____	By: _____
Printed: _____	Printed: _____
Title: _____	Title: _____

PLUGGEDIN PROGRAM MEMBER SITE DESIGNEE:

Printed Name: _____

Title: _____

E-mail: _____

Phone: _____

Fax: _____

Note: Palm recommends one and ONLY one person at any site have these responsibilities. Ideally person would oversee all compliance factors related to this PluggedIn Program Membership Agreement.